

Justification Review Document
for Other than Full and Open Competition - FAR Part 6

Program/Equipment: United States Military Entrance Command (MEPCOM) Fee Basis Providers (FBPs)

Authority: 10 U.S.C. 3204(a)(1), as implemented by Federal Acquisition Regulation (FAR) 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

Amount: \$34,121,014.92

Prepared by:

Typed Name: [REDACTED] [REDACTED]

Date: 22 Jan 2025 [REDACTED]

Contracting Officer:

Typed Name: David Robledo [REDACTED]

Date Reviewed: 07 Mar 2025 E-Mail: David.Robledo17.civ@health.mil

Technical Representative:

Typed Name: [REDACTED] [REDACTED]
[REDACTED]

Requirements Representative:

Typed Name: [REDACTED] [REDACTED]
[REDACTED] Date: 22 Jan 2025

Review\$

I have reviewed this justification and find it adequate to support other than full and open competition.

[Redacted]

Typed: [Redacted]

Signature [Redacted]

Date: [Redacted]

[Redacted]

Typed Name: [Redacted]

[Redacted]

[Redacted]

Date: [Redacted]

Typed Name: [Redacted]

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Justification and Approval
for Other than Full and Open Competition- FAR Part 6

1. Contracting Activity: Health Readiness Contracting Office (HRCO)

2. Description of Action: The HRCO requests approval to negotiate a bridge contract for personal services with the incumbent contractor Chenega Tri Services, 5253 Prue Road, Suite 2130, San Antonio, TX 78240, Cage Code 7NE23, to provide Fee Basis Providers (FBP) services to the United States Military Entrance Processing Command (USMEPCOM) to medically qualify applicants for military service. An Indefinite Delivery, Indefinite Quantity (IDIQ) contract with firm fixed price contract line item numbers (CLINs) is anticipated. The type of funds to be used is Fiscal Year 25 Operations and Maintenance (OMA) funds. The period of performance is 18 April 2025 through 17 December 2025 and will include four 1-month options, extending the period of performance through 17 April 2026, should all four options be exercised.

3. Description of Supplies/Services:

a. USMEPCOM screens and processes enlisted recruits into the United States Armed Forces at the 65 Military Entrance Processing Stations (MEPS) and one remote processing station. This requirement provides FBP services to MEPCOM consisting of medical prescreening and examinations in accordance with DoD accession medical standards DHA PM 6025.13 vol 4 and US MEPCOM Regulations 40-1 Medical Qualification Program and 40-2 Medical Services Provider Quality Management Program. The FBPs are Physicians, Certified Nurse Practitioners, and Physician Assistants.

b. The estimated total value of the proposed action is \$22,663,343.28 for an eight-month period of performance. The contract will include four 1-month options at \$2,832,917.91 each totaling \$11,331,671.64. Should all four options be exercised the total dollar value is \$34,121,014.92. The contract will not include FAR Clause 52.217-8 Option to Extend Services.

4. Authority Cited: 10 United States Code 3204(a)(1) as implemented in Federal Acquisition Regulation 6.302-1 Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

5. Reason for Authority Cited:

a. The FBP services are considered mission essential and must be performed under all circumstances to achieve DoD mission readiness. Delaying the requirement is unacceptable. A disruption of services provided by USMEPCOM would negatively impact the manning levels of the Army, Navy, Marine Corp, Air Force, Coast Guard, and Space Force.

b. There are certain barriers that make it impossible for another source to perform the Government's requirement as of the required start date. The FBP's must be a qualified medical doctor, Doctor of Osteopathy, Physician Assistant or Certified Nurse Practitioner, with expert knowledge in the medical qualification requirements stated in DHA PM 6025.13 vol 4 and US MEPCOM Regulations 40-1 Medical Qualification Program and 40-2 Medical Services Provider Quality Management Program. They must also have experience with MHS Genesis and be privileged/credential approved by the USMEPCOM Command Surgeon/J7/Medical Director.

c. USMEPCOM estimates that a certified and licensed professional requires four to eight months of supervised on the job training for a contracted employee to become fully proficient. It will be difficult for a contractor other than the incumbent to recruit, train and retain approximately 203 FBP's with the required experience, education, licenses and privileged/approved by the MEPCOM Commander to provide services at 66 locations beginning 18 April 2025.

6. Efforts to Obtain Competition:

a. Effective competition. The Contracting Officer issued a notice of intent to award a sole source contract on SAM.gov under notice ID W81K04-25-R-A009. One contractor responded by submitting a capability statement. The Contracting Officer reviewed their capability statement and determined their firm cannot perform these short-term services for the reasons mentioned above. No other efforts are being made to obtain competition as only one responsible source, Chenega Tri Services is capable of meeting the minimum requirement prior to the expiration of the current task order.

b. Subcontracting competition. The current requirement is for personal services and the Contracting Officer has determined that a subcontracting plan is not required per the exemption at FAR 19.702(b)(2).

7. Actions to Increase Competition: It is not possible to compete this proposed bridge contract in time for services to commence on 18 April 2025.

8. Market Research: Market research was conducted to identify 8(a) firms with the capability to provide FBP services. The Contracting Office conducted market research on 28 November 2023 and completed an addendum to the market research on 2 February 2024. In addition, the Contracting Officer conducted Industry Day for the follow-on requirement on 12 December 2023. Final market research was conducted on 4 February 2025 by synthesizing the proposed sole source acquisition advising industry of the Government's intent to award a sole source contract to the incumbent contractor, and notifying industry that any quotes, proposals or capability statements received by the stated response time will be considered. [REDACTED],

[REDACTED] The Contracting Officer reviewed their capability statement and determined they do not have the resources and qualified personnel who have been privileged/approved by the MEPs to begin performance on 18 April 2025.

9. Interested Sources: An industry day was conducted for the follow-on requirement on 12 December 2023. For the bridge contract, a notice of the Government's intent to award a sole source contract was published in SAM on 4 February 2025 as required by FAR 5.201. The Contracting Officer reviewed the capability statement received in response to the Government's intent to sole source [REDACTED]. The Contracting Officer determined the firms do not have the resources and qualified personnel who have been privileged/approved by the MEPs to begin performance on 18 April 2025.

10. Other Facts:

a. Procurement history.

(1) Contract numbers and dates of last awards.

(a) The requirement is currently being performed under task order W81K0419D0001/W81K0424F0162. The task order consists of a 4 month base period and four option periods. The period of performance was 18 April 2024 through 31 October 2024. The contract included four 1-month options extending the period of performance through 17 April 2025. All four options were exercised.

(b) Task order W81K0424F0162 was issued against contract W81K0419D0001. W81K0419D0001 period of performance is from 19 October 2018 to 18 October 2023 and had a maximum total value of \$190,000,000.00. The six month extension of services was exercised from 19 October 2023 through 18 April 2024.

(c) W81K0417D0021 was awarded to Continuum Therapy Services LLC. on 29 September 2017. The contract period of performance was 01 October 2017 through 31 May 2018. The contract included FAR 52.217-8, Option to Extend Services, which was exercised for 3 months extending the period of performance through 31 August 2018. The total dollar value of the contract was \$20,599,992.75 to include FAR 52.217-8, Option to Extend Services.

(d) Competitive contract, W81K0412D0003 was awarded to GTW Consultants on 19 January 2012. The contract period of performance was 1 April 2012 through 30 September 2017. The contract included FAR 52.217-8, Option to Extend Services, which was exercised for 8 months through 31 March 2017. A task order was issued on the last day of the basic contract with a period of performance 31 March 2017 through 30 September 2017. The total dollar value of the contract was \$169,547,507.56.

(2) The Competitive status of these actions.

(a) W81K0419D0001 was solicited as a Small Business Administration 8(a) set aside. A commercial single-award contract was awarded to Chenega Tri-Services on a competitive basis.

(b) W81K0412D0003 was solicited as a Small Business Administration 8(a) set aside. A commercial single-award contract was awarded to GTW Consultants on a competitive basis.

(3) Authority previously cited if less than full and open competition was used. Bridge contract W81K0417D0021 was awarded on a sole source basis to Continuum Therapy Services an 8(a) Alaskan firm in accordance with Section 8(a) of the Small Business Act (15 USC 637(a)(1)) and the Federal Acquisition Regulation (FAR) Part 19.8, and the executed Partnership Agreement (PA) between the U.S. Small Business Administration (SBA) and the Department of Defense

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable based on a price and cost analysis IAW FAR 15.404-1 and comparison with the Independent Government Estimate and previous prices. Services are considered commercial and therefore certified cost or pricing data are not required.

[REDACTED]
[REDACTED]
Signature: [REDACTED]

Typed Name: David D. Robledo

Title: Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]
[REDACTED]

Typed Name: David D. Robledo

Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of USMEPCOM Fee Basis Providers estimated at \$34,121,014.92 on an other than full and open competition basis pursuant to the authority of 10 U.S.C. 3204(a)(1), as implemented by Federal Acquisition Regulation (FAR) 6.302.1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

[REDACTED]

[REDACTED]